

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- x **SUMMONS**

PETER CRUCIATA,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

Plaintiff designates Richmond
County as the place of trial.

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE JAMES PISCOPO, SHIELD NO. 1464,
NYPD POLICE OFFICER MICHAEL E. LAUDANI,
SHIELD NO. 24688, AND NYPD POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 31, 2023

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
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15th Floor
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(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JAMES PISCOPO, 116 Main Street, Staten Island, NY 10307
OFFICER MICHAEL E. LAUDANI, 116 Main Street, Staten Island, NY 10307

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X

PETER CRUCIATA,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE JAMES PISCOPO, SHIELD NO. 1464,
NYPD POLICE OFFICER MICHAEL E. LAUDANI,
SHIELD NO. 24688, AND NYPD POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff PETER CRUCIATA, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 11, 2022, at approximately 11:30 a.m., Plaintiff Peter Cruciata, while lawfully in the vicinity of 735 Woodrow Road, County of Richmond, State of New York, was subject to an unlawful arrest, detention, and excessive use of force by the defendant police officers. In doing so, the defendant officers knowingly ignored Plaintiff and delayed his medical treatment. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, forwarded false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Peter Cruciata is a resident of the State of New York.

2. NYPD Police Detective James Piscopo, Shield No. 1464 is and was at all times relevant herein a detective with the New York City Police Department.

3. NYPD Police Detective James Piscopo, Shield No. 1464 is being sued in his individual and official capacity.

4. Currently and at all times relevant herein, NYPD Police Detective James Piscopo, Shield No. 1464 was assigned to the 123rd Detective Squad of the NYPD.

5. NYPD Police Officer Michael E. Laudani, Shield No. 24688 is and was at all times relevant herein a police officer with the New York City Police Department.

6. NYPD Police Officer Michael E. Laudani, Shield No. 24688 is being sued in his individual and official capacity.

7. Currently and at all times relevant herein, NYPD Police Officer Michael E. Laudani, Shield No. 24688 was assigned to the 123rd Detective Squad of the NYPD.

8. NYPD Police Officers John Does Numbered One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

9. NYPD Police Officers John Does Numbered One Through Ten are being sued in their individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On May 11, 2022, at approximately 11:30 a.m., Plaintiff was lawfully present in the vicinity of 735 Woodrow Road, County of Richmond, New York, when the defendant officers unlawfully arrested Plaintiff without legal justification or probable cause.

17. Plaintiff and his family, as the lawful owners and landlords of the property, regularly visit to landscape the property.

18. On this date, Plaintiff was lawfully present at the subject location for this reason when the defendant officers arrived and alleged that he had destroyed security cameras on the subject property, which he owns.

19. Defendant officers arrived and arrested Plaintiff, placing him in unreasonably tight metal handcuffs causing pain to his wrists, and subjected him to an unlawful pat-down search.

20. At no time relevant herein had Plaintiff committed a crime or violate the law in any way, nor did the defendant officers have any objective basis to accuse Plaintiff of committing a crime or violating the law.

21. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

22. Plaintiff did not resist arrest at any point.

23. Plaintiff was placed in the back of an NYPD vehicle and transported to the 123rd Precinct against his will.

24. Upon his arrival to the 123rd Precinct, he was unlawfully searched, fingerprinted, photographed, and placed in a holding cell.

25. Plaintiff began requesting medical attention, informing the defendant officers that he was 71-years-old, and had recently undergone open-heart surgery and five bypasses, that he would not remain in a cell indefinitely without necessary medical attention.

26. Defendant officers informed Plaintiff that he would receive a Desk Appearance Ticket and be released within an hour.

27. Plaintiff was not released, and instead was transported after several hours from a holding cell on the first floor, upstairs to the second floor, despite his condition and his continued efforts to convey his medical needs to defendant officers.

28. None of the Defendant Officers read Plaintiff his Miranda Rights, nevertheless, defendant officers began questioning Plaintiff, ignoring his two clear and unequivocal requests for an attorney.

29. In the evening on May 11, 2022, Plaintiff was transported to Central Booking, where his continued requests for medical attention were ignored.

30. While Plaintiff was in custody, the defendant police officers provided the Richmond County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

31. Specifically, the defendant police officers falsely stated to the Richmond County District Attorney's Office that Plaintiff was engaged in criminal mischief: intent to damage property.

32. Plaintiff owned the property that he was alleged to have damaged.

33. Even further, the Defendant Officers watched video surveillance prior to the arrest and stated in their police reports that "camera taken by unknown perp" and "suspect is unknown from the video surveillance."

34. There was absolutely no probable cause to arrest the Plaintiff.

35. At the precinct, as a result of his medical condition, Plaintiff began to experience chest pains and elevated blood pressure.

36. Plaintiff was finally transported to Richmond University Medical Center for treatment, where he was subjected to embarrassment, being handcuffed and shackled in a crowded emergency room.

37. On May 12, 2022, Plaintiff was released from the hospital and was transported back to Central Booking and placed into a holding cell.

38. At approximately 6:00 P.M., realizing he would be spending another night in custody, Plaintiff began to experience chest pain and high blood pressure, necessitating his transfer back to Richmond University Medical Center for treatment.

39. Plaintiff was released from the hospital at approximately 4:00 A.M. and transferred back to Central Booking.

40. During each of the transfers described herein, Plaintiff was handcuffed tightly behind his back, and his ankles were tightly shackled.

41. Plaintiff repeatedly asked defendant officers to loosen the restraints, informing him of the pain, but was ignored each time.

42. During Plaintiff's time in custody, those defendant officers not directly involved in the conduct described herein observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

43. On May 13, 2022, Plaintiff was arraigned and was released on his own recognizance.

44. After arraignment, Plaintiff went to Staten Island University Hospital to treat a laceration caused by shakles the tightly placed, dirty shackles.

45. The laceration was discovered to be infected, and Plaintiff was prescribed antibiotics, but a scar remains on his ankle today.

46. Plaintiff would return to court approximately six (6) times before the charges against Plaintiff were dismissed and sealed on December 8, 2022.

47. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

49. Defendants owed a duty of care to Plaintiff.

50. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing her.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

52. All of the foregoing occurred without any fault or provocation by Plaintiff.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION **Unlawful Stop, Question, and Search**

56. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

57. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

58. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:** **Unlawful Seizure and Deprivation of Liberty**

62. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

63. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

64. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION
False Imprisonment

65. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

66. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

67. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

70. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:
Excessive Force

71. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

72. The use of excessive force by defendants by, amongst other things, tightly handcuffing Plaintiff's wrist and shackling Plaintiff's ankle so tightly it resulted in a laceration that became infected because it was not treated while he was in custody constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

73. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

74. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

82. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Failure to Intervene

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

85. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

88. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION
Violation of Fourth And Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process

92. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

93. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

94. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Richmond County District Attorney's Office.

95. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Richmond County District Attorney's Office.

96. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process

and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

97. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

100. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

101. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

102. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

103. Defendants commenced and continued a criminal proceeding against Plaintiff.

104. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

105. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

106. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

107. Defendants, despite being aware that Plaintiff had underwent open heart surgery, five bypasses, seven months earlier and required medication and additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

108. The delay in medical treatment to Plaintiff's injuries resulted in increased severity in injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

109. Plaintiff sustained a laceration as a result of tight ankle shackles. The laceration was not treated while Plaintiff was in custody leading to an inflection and scarring.

110. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Individual Defendant Officers' Violations of Plaintiff's AC 8-802 Rights

114. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

115. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

116. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

117. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for over thirty-six (36) hours.

118. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

119. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

120. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

121. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

122. The defendant officers that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

123. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

124. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION
City-Employer's Liability for Defendant Officers' Violations of
Plaintiff's AC 8-802 Rights

125. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

126. Defendant officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

127. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

128. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

129. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

130. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 48 hours.

131. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

132. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

133. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

134. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

135. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

136. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

137. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff PETER CRUCIATA demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees

inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
January 31, 2023

By: 
Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
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15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

DETECTIVE JAMES PISCOPO, 116 Main Street, Staten Island, NY 10307

OFFICER MICHAEL E. LAUDANI, 116 Main Street, Staten Island, NY 10307

ATTORNEY'S VERIFICATION

OMAR T. RUSSO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 31, 2023


OMAR T. RUSSO